

Dr. Vinay Kumar @ Dayashankar v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 14 July 2022 · Writ-C No. 19282 of 2022 · **Writ disposed; liberty to object under para 6.8 with stay of coercive recovery.**

HEADNOTE

A consumer's writ against a recovery citation of Rs. 1,08,052 plus other charges was disposed of without examining merits. On the licensee's statement that an objection would be decided time-bound, the Court granted liberty to object under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, directed a reasoned decision after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever was earlier.

FACTUAL SUMMARY

The petitioner challenged a recovery citation issued by the distribution licensee for Rs. 1,08,052 plus other charges. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period. The High Court did not examine the underlying demand. It closed the writ on that statement, with liberty to object under the Supply Code and a short stay of coercive recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand as statutory alternate remedy

HOLDING

Without expressing any opinion on merits, a writ against a recovery citation is disposed of by granting the consumer liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, within four weeks; the authority must decide that objection in accordance with law within the next four weeks after hearing; coercive recovery stays for eight weeks or until disposal of the objection, whichever is earlier.

¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 Writ against a recovery citation was closed without merits examination and the consumer was sent to the paragraph 6.8 objection. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the 6.8 objection is filed within four weeks, respondent no. 4 must decide it after hearing within the next four weeks, with coercive action stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CITATION AND THE UNDERLYING DEMAND

The Court expressly declined to express any opinion on the petitioner's case. ¶ 1